

Ashok Kumar Singh v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 2 May 2024 · 2024:AHC-LKO:34432-DB · Writ-C No. 3985 of 2024 · **Writ disposed; approach the Executive Engineer for a section 126 order; recovery stayed.**

HEADNOTE

A writ seeking to quash a paragraph 6.8 provisional assessment for alleged theft and the Tahsildar's recovery citation was disposed of without examining the merits. The consumer must approach the Executive Engineer, Madhyanchal Vidyut Vitran Khand-II, Gauriganj, within one week; if he does and completes the formalities, the Engineer shall consider the case and pass orders under section 126 within four weeks. Recovery stays for six weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Ashok Kumar Singh has a domestic connection from 30 January 1999 and says he paid his bills regularly. An enforcement inspection treated the supply as theft of electricity. The Executive Engineer, Gauriganj, issued a notice on 19 April 2023 making a provisional assessment under paragraph 6.8 and asking him to approach within fifteen days. He wrote only on 2 June 2023. The Tahsildar, Amethi, issued a recovery citation on 9 October 2023, put at Rs.3,91,813 in the petition and Rs.4,81,919 in the prayer. He sought quashing of both.

HOLDING-UNITS

INTERPLAY · EA2003::126

Final order after a paragraph 6.8 provisional assessment

HOLDING

Where recovery follows a paragraph 6.8 provisional assessment for alleged theft, and the licensee states that a representation on incorrect assessment will be considered and a final order passed under section 126, the writ is disposed by directing the consumer to approach the Executive Engineer within one week. On completion of formalities the Engineer shall consider the case and pass appropriate orders under section 126 within four weeks. Recovery stays for six weeks or until that decision, whichever is earlier. ¶ 4-7

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court did not quash the paragraph 6.8 provisional assessment or the recovery citation. It disposed of the writ by sending the consumer to the Executive Engineer for consideration and an order under section 126. ¶ 4-7

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay After the fifteen days in the 19 April 2023 notice had passed, the consumer was still directed to approach the Executive Engineer within one week, and recovery was stayed for six weeks or until the section 126 order, whichever was earlier. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS MADE OUT AND WHETHER THE PROVISIONAL ASSESSMENT AND THE RECOVERY AMOUNT WERE CORRECT

Left to the Executive Engineer, who is to consider the case and pass orders under section 126. ¶ 6-7

